

DATA PROCESSING AGREEMENT

Pursuant to the Digital Personal Data Protection Act, 2023 (DPDP Act) and GDPR (where applicable)

Data Controller:	Client (as identified in the Master Services Agreement)
Data Processor:	Nexaflow Technologies Pvt. Ltd.
Agreement Date:	01 March 2025
Linked Agreement:	Master Services Agreement — MSA-NXT-2025-0047
DPO Contact (Processor):	dpo@nexaflow.in +91-80-4567-8902
Governing Law:	India (DPDP Act, 2023); GDPR (EU/UK where applicable)

1. SUBJECT MATTER & PURPOSE OF PROCESSING

1.1 The Processor shall process personal data solely for the purpose of providing payroll processing, HR management system hosting, and employee data analytics services as specified in the Master Services Agreement.

1.2 Processing shall be carried out only on documented instructions from the Controller, unless required by applicable law.

1.3 The Processor shall inform the Controller if, in its opinion, any instruction infringes applicable data protection laws.

2. CATEGORIES OF PERSONAL DATA PROCESSED

Data Subjects:	Employees and contractual staff of the Controller
Personal Data Categories:	Full names, email addresses, employee IDs, salary and compensation data, bank account identifiers, attendance records, performance ratings, tax information (PAN)
Special Category Data:	None — not processed under this Agreement
Estimated Volume:	Approximately 500-1200 data subject records
Retention Period:	3 years from termination of the MSA, then secure deletion

3. PROCESSOR OBLIGATIONS

3.1 The Processor shall implement appropriate technical and organisational measures to ensure security of personal data, including encryption at rest (AES-256) and in transit (TLS 1.3).

3.2 All Processor personnel with access to personal data shall be bound by confidentiality obligations.

3.3 The Processor shall assist the Controller in responding to data subject rights requests within the timelines mandated by applicable law.

3.4 The Processor shall make available all information necessary to demonstrate compliance with this Agreement.

4. SUB-PROCESSORS

4.1 The Processor is authorised to engage sub-processors for the delivery of services.

RISK FLAG — SUB-PROCESSOR LIST NOT PROVIDED

The Processor has not provided a list of approved sub-processors as required under Article 28(2) GDPR and Section 8 of the DPDP Act, 2023. The Controller requires written disclosure of all sub-processors prior to engagement. This section is currently non-compliant.

5. DATA RESIDENCY & CROSS-BORDER TRANSFERS

Declared Data Residency:	India — data to be stored and processed within Indian jurisdiction
Primary Infrastructure:	On-premises servers at Bengaluru data centre (Tier III certified)
Cloud Infrastructure Used:	AWS ap-south-1 (Mumbai) for primary workloads
ANOMALY DETECTED:	Internal architecture document references AWS us-east-1 (Virginia, USA) for disaster recovery and backup replication — NOT disclosed to Controller or covered by cross-border transfer mechanism
Transfer Mechanism:	Standard Contractual Clauses (SCCs) — applicable only to Mumbai region
DPDP Act Compliance:	Cross-border transfer to US region not authorised under DPDP Act Schedule unless exemption applies — no exemption documented

6. BREACH NOTIFICATION

RISK FLAG — BREACH NOTIFICATION PERIOD NOT SPECIFIED

- 6.1 The Processor shall notify the Controller of any personal data breach without undue delay upon becoming aware of it.
- 6.2 [TIMELINE TO BE SPECIFIED] — The parties have not agreed on a specific notification timeline. DPDP Act, 2023 requires notification to the Data Protection Board within a prescribed period. GDPR requires notification within 72 hours. This agreement is currently silent on timelines and is non-compliant.
- 6.3 Breach notifications shall include: nature of the breach, categories and approximate number of data subjects affected, likely consequences, and measures taken or proposed to address the breach.

7. SECURITY MEASURES

- 7.1 Encryption: AES-256 at rest; TLS 1.3 in transit for all data transfers.
- 7.2 Access Control: Role-based access control (RBAC) with least-privilege principle. Multi-factor authentication (MFA) enforced for all administrative access.
- 7.3 Audit Logging: All access to personal data is logged and retained for a minimum of 12 months.
- 7.4 Penetration Testing: Annual penetration testing by an accredited third party. Last test date: November 2024. Report available on request.
- 7.5 Vulnerability Management: Critical vulnerabilities patched within 48 hours; high within 7 days.

8. DATA SUBJECT RIGHTS ASSISTANCE

- 8.1 The Processor shall assist the Controller in fulfilling obligations with respect to data subject rights including: right of access, right to correction, right to erasure, right to data portability, and right to grievance redressal under the DPDP Act.
- 8.2 Assistance shall be provided within 5 business days of a written request from the Controller.

For Nexaflow Technologies Pvt. Ltd.	For the Controller
Signature: _____	Signature: _____
Name: Rajiv Menon	Name: _____
Designation: Managing Director	Designation: _____
Date: 01 March 2025	Date: _____